

11. 9:00 AM CASE NUMBER: C24-02873
CASE NAME: JUDITH SEELYE VS. TAMPICO HEALTHCARE CENTER, LLC
***HEARING ON MOTION IN RE: TO ABATE ACTION**
FILED BY: TAMPICO HEALTHCARE CENTER, LLC
TENTATIVE RULING:

Motion withdrawn by Attorney Schrader.

12. 9:00 AM CASE NUMBER: C24-03111
CASE NAME: VICKI SOLLIS DAVIS VS. ANN CHAMBERS
***HEARING ON MOTION IN RE: INTERLOCUTORY JUDGMENT OF PARTITION BY SALE**
FILED BY: SOLLIS DAVIS, VICKI LYNN
TENTATIVE RULING:

Unopposed – granted.

13. 9:00 AM CASE NUMBER: C25-02746
CASE NAME: CARTER HALLOCK VS. WENDY JARDINE
HEARING IN RE: SPECIAL MOTION FOR DECLARATORY RELIEF
FILED BY: CARTER HALLOCK
TENTATIVE RULING:

Plaintiff Carter Chapin Hallock (“Plaintiff”) has filed the instant special motion for declaratory relief, which asks the Court to declare, pursuant to Code of Civil Procedure section 1060, that he is a 49% owner of CMOUTS LLC, based on an alleged written contract attached to the complaint as Attachment A.

Code of Civil Procedure section 1060, provides that:

Any person interested under a written instrument . . . or under a contract, or who desires a declaration of his or her rights or duties with respect to another. . . may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties. . . including a determination of any question of construction or validity arising under the instrument or contract.

As the statutory authority provides, a claim for declaratory relief must be asserted in “an original action or cross-complaint,” not as a standalone motion. (See Code of Civ. Proc., § 1060.) Here, Plaintiff’s operative complaint does not contain a claim for declaratory relief, and the instant “special motion” is not a recognized procedure for asserting declaratory relief.

Plaintiff’s special motion for declaratory relief is DENIED.

14. 9:00 AM CASE NUMBER: C25-03310
CASE NAME: BLANE PHILLIPS VS. MATTHEW DAVIS
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: DAVIS, MATTHEW
TENTATIVE RULING:

Plaintiff, Blane Richard Phillips, filed this case on November 12, 2025 against defendants Matthew and Rebecca Davis. The complaint alleges two causes of action, one for breach of a promissory note and the other for common counts. Defendants move to quash service of summons, arguing service did not comply with statutory requirements. The motion is **granted**, as discussed below.

In this case, plaintiff served defendants under Code of Civil Procedure, section 415.20, subdivision (b), which authorizes substitute service in lieu of personal delivery: "If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, . . . a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge . . . at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left."

Plaintiff submitted proofs of service by a registered process server showing that the process server, after several attempts to serve defendants personally at 2745 Minert Road, left the summons and complaint with "David Anger," defendants' former roommate who was present at the Minert address on December 28, 2025. The process server then mailed defendants a copy of the same at the Minert address.

"[T]he filing of a proof of service creates a rebuttable presumption that the service was proper," but only if it "complies with the statutory requirements regarding such proofs." (*Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.)

Defendants argue service was ineffective because they had moved to Maryland in July 2025 and have not returned except for a brief visit in August 2025. Matthew Davis submits a declaration, attaching a copy of a lease agreement for their apartment in Maryland, signed in July 2025. Defendants represent in their declarations that Rebecca has been attempting to sell the Minert Road property, but that she still pays taxes on it and pays for water and garbage due to the fact that a friend still lives there.

In opposition to the motion, plaintiff points out that the process server first attempted to conduct personal service several times. Upon the very first attempt, the individual present represented to the process server that, while the defendants had moved, they "still get mail [at the Minert Road address], which according to him they do forward to them."

The evidence here is not in conflict. Plaintiff argues the several attempts at personal service show due diligence, while defendants argue these attempts do not qualify because the process server knew defendants had moved. Both sides also discuss and cite the same authorities: *Ellard v. Conway*

(2001) 94 Cal.App.4th 540 and *Hearn v. Howard* (2009) 177 Cal.App.4th 1193. Notably, those cases both dealt with service at private post office box rental stores, not service at a former address. However, the relationship that can be inferred here is sufficiently similar because the person residing in the home owned by defendants had a duty to forward mail, particularly if they did not notify the post office of any change.

The declaration of Rebecca Davis states, “we have a friend living at the property.” (Declaration of Rebecca Davis in Support of Motion, ¶15.) Neither Rebecca Davis nor Matthew Davis deny that the friend is the person who received the papers, that defendants “still get mail” at the Minert Road address, or that they the friend did, in fact, forward the papers to them. Neither defendant submits any evidence of having changed their mailing address with the United States Postal Service.

Pursuant to these facts, plaintiff has shown defendants were served at their “usual mailing address” for purposes of section 415.20, subdivision (b). However, the evidence does not indicate reasonable diligence was employed to first attempt to “personally deliver” the summons and complaint. (Code Civ. Proc., § 415.20 (b).) Because such reasonable diligence was required as a condition to substitute service, the motion is granted.

15. 9:00 AM CASE NUMBER: C25-03424
CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Hearing vacated by stipulation of the parties.

16. 9:00 AM CASE NUMBER: C25-03424
CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC
MOTION TO STRIKE PORTIONS OF PLTFs COMPLAINT
FILED BY: CHEVRON U.S.A. INC
TENTATIVE RULING:

Hearing vacated by stipulation of the parties.

17. 9:00 AM CASE NUMBER: C25-03480
CASE NAME: ANNA ROWE VS. LYNN SHAFER
***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES**
FILED BY: SHAFER, LYNN FREDERICK
TENTATIVE RULING:

Unopposed –granted.